

The Greater Noida Industrial Development Authority (Meetings) Regulations, 1991

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The Greater Noida Industrial Development Authority (Meetings) Regulations, 1991

Published vide Notification No. 283-Bha. U./18-11-145 Bha-91 Lucknow, dated the 23rd October, 1991, published in U.P. Gazette, dated 26-12-1982

In exercise of the powers under Section 19 of the Uttar Pradesh Industrial Area Development Act, 1976 (U.P. Act No. 6 of 1976), the Greater Noida Industrial Development Authority with the previous approval of the State Government hereby makes the following Regulations to provide for the summoning and holding of meetings of the Authority, time and place of such meetings, the conduct of business at such meetings, the number of members necessary to make a quorum and matters incidental thereto :

1.

Short title and commencement.

(1)

These regulations may be called the Greater Noida Industrial Development Authority (Meetings) Regulations, 1991.

(2)

They shall come into force with effect from the date of their publication in the Gazette.

2.

Definitions.

(1)

In these regulations, unless the context otherwise requires,-

(a)

"Act" means the Uttar Pradesh Industrial Area Development Act, 1976.

(b)

"Authority" means the Greater New Okhla Industrial Development Authority constituted under Section 3 of the Act.

(c)

"meeting" means meeting of the Authority.

(d)

"member" means a member of the Authority.

(2)

Words and expressions used but not defined in these regulations and defined in the Act, shall have the meaning assigned to them in the Act.

3.

Meetings of the Authority and the date, time and place thereof.

(1)

There shall be held at least one meeting in every three months. The Chairman may convene a meeting whenever he thinks fit and shall, upon a requisition made in writing by not less than three members and served on the Chairman or sent to him by registered post, convene a meeting within thirty days from the date of service or receipt of such requisition :

Provided that the Chairman may for reasons to be recorded in writing, postpone a meeting by giving such notice as he may consider expedient.

(2)

The notice about the date, time and place of a meeting shall be sent or caused to be sent by the Chief Executive Officer to each member at least seven days before the date fixed for the meeting :

Provided that in case of an emergent meeting a notice of shorter period than seven days may be given to the members.

(3)

A meeting may be adjourned for a subsequent date and an adjourned meeting may be further adjourned in the like manner. Where a meeting is so adjourned or the adjourned meeting is further adjourned, the Chairman before adjourning it, shall fix and announce at the meeting, the date on which and the time and place at which the adjourned meeting shall be held and in that case no notice under sub-regulation (2) shall be necessary.

(4)

Only such business shall be transacted at the adjourned meeting or further adjourned meeting as has remained untransacted at the time of adjournment or further adjournment, as the case may be, of the meeting.

(5)

A meeting may be spread over more than one day and may consist of more sittings than one.

4.

Roll of members.

(1)

There shall be maintained and placed at every meeting a roll of members.

(2)

Every member shall before taking his seat, sign the roll.

5.

Sitting arrangement.

- The member shall sit in such order as may be determined by the Chairman.

6.

Transaction of business at a meeting.

(1)

Except as otherwise provided in any law for the time being in force, no business shall be transacted at any meeting which has not been included in the agenda prepared under sub-regulation (2) :

Provided that any urgent business not included in the agenda may be transacted with the permission of the Chairman or the member presiding.

(2)

The agenda for the meeting shall be prepared by or under the orders of the Chief Executive Officer and sent to the members alongwith the notice under sub-regulation (2) of Regulation 3.

7.

Quorum.

(1)

The quorum necessary for transaction of any business in a meeting shall be three members.

(2)

If a meeting is adjourned for want of the quorum, no quorum shall be necessary for the adjourned meeting.

8.

Presiding of the meeting.

- The Chairman shall preside over the meeting and if at a meeting the Chairman is not present, the members present shall elect one of them to preside over the meeting and the member so elected shall perform such duties and functions and may exercise such powers as may be necessary for the transaction of business at the meeting.

9.

Right to ask questions.

(1)

Subject to the conditions hereinafter appearing, a member may ask questions on any matter relating to the discharge of functions by the administration of the Authority.

(2)

Any member desirous to ask a question shall give at least six days clear notice in writing to the Chairman specifying the question therein.

(3)

All questions shall be answered from the Chair :

Provided that the Chairman or the member presiding, as the case may be, at the meeting may require the Chief Executive Officer, or any other officer of the Authority present to furnish an elucidation in relation to such question.

10.

Exclusion of member from certain proceedings.

- A member shall not vote on or take part in the discussion of any matter coming up for consideration at a meeting if the matter is one in which, he has directly or indirectly, a personal interest or in which he is professionally interested on behalf of a client, principal or other person. Whenever any such matter comes up for discussion at any meeting, the member concerned should forthwith take permission of the Chairman or, as the case may be, of the member presiding, to absent himself from the meeting and leave the meeting until that matter has been disposed of.

11.

Point of Order.

- A member may at any time during a meeting, raise a point of order for the decision of the Chairman or the member presiding, as the case may be, but in doing so he shall confine himself to stating the point and the Chairman or the member presiding, as the case may be, shall decide all points of order which may be raised or be referred to him and his decision shall be final.

12.

Decision by vote.

(1)

All the questions which may come up at the meeting of the Authority shall be decided by a majority of the votes of the

members present and voting.

(2)

In case of equality, the Chairman or, as the case may be, the member presiding, shall have a second or casting vote.

13.

Minute book of the resolutions.

(1)

The name of the members present, and the proceedings held and resolutions passed at a meeting shall be entered in a book, to be called the minute book, by the Chief Executive Officer or any other officer authorised by him.

(2)

The minutes of the meeting shall be read out at the same meeting or the next ensuing meeting and after being passed as correct by the members, by a majority of these members who were present in such meeting or previous meeting, as the case may be, certified under the signatures of the Chairman or, as the case may be, the member presiding.

(3)

The Chief Executive Officer shall, as early as possible after the minutes are certified under sub-regulation (2) send or cause to be sent a copy of the minutes to all members.

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